



## CHAPTER li.

An Act to confirm a Scheme approved and certified by the Board of Education under the Charitable Trusts Act, 1853 relating to the Dewsbury Endowed Schools Foundation. A.D. 1922.

[20th July 1922.]

**W**HEREAS in pursuance of sections fifty-four to sixty of the Charitable Trusts Act 1853 and under the Board of Education Act 1899 and the Board of Education (Powers) Orders in Council 1900 to 1902 the Board of Education have approved and certified the Scheme set out in the schedule to this Act and that Scheme is specially distinguished and set forth in a report made by the Board of Education to His Majesty in the month of February nineteen hundred and twenty-two and laid before both Houses of Parliament :

And whereas that Scheme requires the confirmation of Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

**1.**—(1) The Scheme set out in the schedule to this Act is hereby confirmed.

Confirma-  
tion of  
Scheme.

(2) Nothing in this Act or in that Scheme shall save as in that Scheme expressly provided take away abridge or affect any power or jurisdiction of the High Court or of the Board of Education with respect to the Foundation dealt with by that Scheme or with respect to any scheme affecting that Foundation.



[Ch. li.]                      *Board of Education* [12 & 13 GEO. 5.]  
*Scheme (Dewsbury Endowed Schools Foundation)*  
*Confirmation Act, 1922.*

A.D. 1922.  
 —  
 Short title.

2. This Act may be cited as the Board of Education Scheme (Dewsbury Endowed Schools Foundation) Confirmation Act 1922.

## SCHEDULE.

*Scheme approved and certified by the Board of Education under the Charitable Trusts Acts 1853 to 1894 in the matter of the Foundations together named the Dewsbury Endowed Schools Foundation.*

Foundations  
 to which  
 Scheme  
 relates.

1. This Scheme relates to the following Foundations at Dewsbury in the West Riding of Yorkshire :—

- (1) The Wheelwright Grammar Schools regulated by a scheme made under the Endowed Schools Acts on 3 May 1888 as altered and amended by schemes of 28 November 1893 26 November 1897 24 August 1900 4 November 1901 and 3 July 1902;
- (2) The Daw Green Exhibition Fund regulated by another scheme made under the Endowed Schools Acts on 3 May 1888 as altered by a scheme of 23 October 1894 and the said schemes of 24 August 1900 and 3 July 1902;
- (3) The Charity of Dr. Matthew Hinchliffe regulated by the said scheme of 24 August 1900 (made under the Charitable Trusts Acts) as altered by the said scheme of 3 July 1902; and
- (4) The Dewsbury and District Technical School regulated by the said scheme of 24 August 1900;

which Foundations are together known as the Dewsbury Endowed Schools Foundation.

Administra-  
 tion and  
 title.

2. Whereas the mayor aldermen and burgesses of the county borough of Dewsbury acting by the Council (which corporation so acting is in this Scheme called " the Council ") have expressed their willingness to undertake the administration of the Foundations to which this Scheme relates :

The schemes heretofore regulating the said Foundations are hereby repealed and those Foundations and their endowments (including the particulars specified in the schedule to this Scheme) shall be administered as a single Foundation by the Council as trustees in conformity with the provisions of this Scheme under the name of the Dewsbury Endowed Schools Foundation.



[12 & 13 GEO. 5.] *Board of Education* [Ch. 1i.]  
*Scheme (Dewsbury Endowed Schools Foundation)*  
*Confirmation Act, 1922.*

3. The land heretofore belonging to the Wheelwright Grammar Schools and the Dewsbury and District Technical School with the buildings for the time being thereon (except any parts which for the time being may not be needed for the purpose) shall be held by the Council for the purpose of the provision and conduct by them as Local Education Authority for the purposes of Part II. of the Education Act 1902 in the said premises of—

A.D. 1922.  
 —  
 Provided  
 secondary  
 and tech-  
 nical schools.

- (a) a secondary school for boys as day pupils to be called the Dewsbury Wheelwright Grammar School for Boys;
- (b) a secondary school for girls as day pupils to be called the Dewsbury Wheelwright Grammar School for Girls;
- (c) a technical school (including if the authority think fit a school of art) for students of both sexes to be called the Dewsbury Technical School;
- (d) if the authority think fit evening or day classes for technical or other further education:

Provided that every such school or class shall be conducted in such a manner as to be eligible for recognition as efficient by the Board of Education.

4. The endowments of the Foundation (other than property for the time being occupied for the purposes of the Foundation under the foregoing provisions) shall be administered as a single fund to be called the Wheelwright Hinchliffe and Daw Green Fund hereinafter referred to as the "general endowment" Provided that the Hemingway Prize Fund of the technical school shall be administered by the Council as a separate fund in accordance with the existing trusts.

Wheelwright  
 Hinchliffe  
 and Daw  
 Green Fund.

5.—(1) The Council shall out of the income of the general endowment apply two yearly sums of 150*l.* each in maintaining scholarships tenable at the Dewsbury Wheelwright Grammar Schools for Boys and Girls respectively to be awarded to children who are and have for not less than two years been in attendance at public elementary schools in the ancient parish of Dewsbury.

Scholarships  
 at Wheel-  
 wright  
 Grammar  
 Schools.

(2) In the award of two-thirds in value as nearly as may be of the scholarships for each school under this clause preference shall be given other things being equal to the poorest tenants' children on any of the estates for the time being forming part of the endowment of Wheelwright's Charity.

6.—(1) For the benefit of young persons at the Dewsbury Wheelwright Grammar Schools and the Dewsbury Technical School the Council shall apply such yearly sums as they think fit out of the income of the general endowment not being less than—

Leaving  
 exhibitions.

- (a) 200*l.* in the case of the grammar school for boys;
- (b) 200*l.* in the case of the grammar school for girls; and
- (c) 100*l.* in the case of the technical school,



[Ch. li.]                      *Board of Education* [12 & 13 GEO. 5.]  
*Scheme (Dewsbury Endowed Schools Foundation)*  
*Confirmation Act, 1922.*

A.D. 1922.      in the maintenance of leaving exhibitions to be awarded to pupils who are and have for not less than two years been in the school.

(2) The exhibitions shall be tenable at any university or at any training college or other institution of higher education approved by the Council and shall consist either of single payments or of payments extending over such period (renewable or otherwise) as the Council by rule prescribe.

General conditions as to scholarships and exhibitions.

7.—(1) Subject to the provisions of this Scheme the scholarships and exhibitions aforesaid shall be freely and openly competed for and shall be awarded for merit on the result of such examination and under such rules (including rules as to the age limits of candidates and as to value) as the Council think fit. Any scholarship or exhibition which no duly qualified candidate is adjudged worthy to take shall for that turn not be awarded.

(2) The scholarships and exhibitions shall be tenable only for the purposes of education. If in the judgment of the Council the holder of a scholarship or exhibition is guilty of serious misconduct or idleness or fails to maintain a reasonable standard of proficiency or ceases to pursue his education the Council may deprive him of the scholarship or exhibition and for this purpose in the case of an exhibition may act on the report of the proper authorities of the institution at which it is held or on such other evidence as the Council think sufficient. Under this sub-clause the decision of the Council shall be final in each case.

Residuary income.

8. After providing for the scholarships and exhibitions aforesaid the Council shall apply the residue of the net income of the general endowment for the benefit of the county borough of Dewsbury (as the same is for the time being constituted) in accordance with the provisions of the will of Dr. Matthew Hinchliffe that is to say for the promotion and furtherance of high-class education amongst the young of both sexes above the age of thirteen years and resident in the borough.

Saving of interests.

9. Any scholarship exhibition or other like emolument awarded on or before the date of this Scheme shall be maintained and held as nearly as may be as if this Scheme had not been made.

Orders for replacement not affected.

10. Nothing in this Scheme shall affect any Order of the Charity Commissioners or the Board of Education now in force so far as it makes provision for the discharge of any debt or the replacement of any stock or money.

Management of property.

11. The Council shall manage the property of the Foundation not occupied for the purposes thereof according to the general law applicable to the management of property by trustees of charitable foundations provided that any portions of the land other than buildings and appurtenances of buildings may be set



[12 & 13 GEO. 5.]      *Board of Education*      [Ch. li.]  
*Scheme (Dewsbury Endowed Schools Foundation)*  
*Confirmation Act, 1922.*

apart by the Council for allotments under the Allotments Extension Act 1882 The expenses of the Council under this clause (including the cost of upkeep of the said property) shall be paid out of the income of the endowment of the Foundation. A.D. 1922.

12. The Council may if they think fit delegate their powers under this Scheme to their education committee established under the Education Act 1902 with or without any restrictions or conditions as they think fit. Delegation.

13.—(1) The parent or guardian of or person liable to maintain or having the actual custody of any scholar attending a school or class as a day scholar may claim by notice in writing addressed to the principal teacher the exemption of such scholar from attending prayer or religious worship or from any lesson or series of lessons on a religious subject and such scholar shall be exempted accordingly and a scholar shall not by reason of any exemption from attending prayer or religious worship or from any lesson or series of lessons on a religious subject be deprived of any advantage or emolument in a school or class or out of the endowment of the Foundation to which he would otherwise have been entitled. Religious exemptions.

(2) If any teacher in the course of other lessons at which any scholar exempted under the foregoing provisions is in accordance with the ordinary rules of the school or class present teaches systematically and persistently any particular religious doctrine from the teaching of which any exemption has been claimed as before provided the governing body shall on complaint made in writing to them by the parent guardian or person liable to maintain or having the actual custody of such scholar hear the complainant and inquire into the circumstances and if the complaint is judged to be reasonable make all proper provisions for remedying the matter complained of.

14. The religious opinions of any person or his attendance or non-attendance at any particular form of religious worship shall not in any way affect his qualification for being a member of a governing body under this Scheme. Religious opinions of governing body.

15. Nothing in this Scheme shall derogate from the exclusive right of the Board of Education to exercise any rights or powers of the visitor of the Wheelwright Grammar Schools exerciseable through or by them immediately before the date of this Scheme. Jurisdiction of visitor.

16. The Board of Education may in the exercise of their ordinary jurisdiction under the Charitable Trusts Acts 1853 to 1894 frame schemes for the alteration of any portions of this Scheme provided that such alteration shall not be contrary to anything contained in the Endowed Schools Acts 1869 1873 and 1874. Alteration of Scheme.

17. Any question as to the construction of this Scheme or as to the regularity or the validity of any acts done or about Questions under Scheme



[Ch. 11.]      *Board of Education* [12 & 13 GEO. 5.]  
*Scheme (Dewsbury Endowed Schools Foundation)*  
*Confirmation Act, 1922.*

A.D. 1922.      to be done under this Scheme shall be determined conclusively by the Board of Education upon such application made to them for the purpose as they think sufficient.

Interpreta-      18. The Interpretation Act 1889 applies to the inter-  
tion.      pretation of this Scheme as it applies to an Act of Parliament.

Date of      19. The date of this Scheme shall be the day on which the  
Scheme.      Royal Assent is given to any Act of Parliament by which this Scheme is confirmed.

SCHEDULE OF PROPERTY.

| Description.                                                                                   | Extent<br>or<br>Amount. | Tenant Person<br>liable or Persons<br>in whose Name<br>invested. | Gross<br>Yearly<br>Income. |
|------------------------------------------------------------------------------------------------|-------------------------|------------------------------------------------------------------|----------------------------|
| <i>Wheelwright Grammar Schools.</i>                                                            | A. R. P.                |                                                                  | £ s. d.                    |
| School site buildings and contents of Boys' School and Girls' School in Halifax Road Dewsbury. | —                       | In hand;                                                         | —                          |
| Land forming part of Field Head Estate in Halifax Road Dewsbury.                               | 2 0 29                  | Do.                                                              | —                          |
| Marlborough House Estate Dewsbury.                                                             | 6 3 0                   | Do. (subject to temporary tenancies).                            | —                          |
| Consols - - - - -                                                                              | £ s. d.<br>1,462 4 7    | The Official Trustees of Charitable Funds.                       | 36 11 0                    |
| <i>Daw Green Exhibition Foundation.</i>                                                        | A. R. P.                |                                                                  |                            |
| Land and farm buildings at North Bierlōy Buttershaw.                                           | 37 1 31                 | S. Alderson and Son (on yearly tenancy).                         | 60 0 0                     |
| Dewsbury Corporation $3\frac{1}{4}$ per cent. Redeemable Stock (1889).                         | £ s. d.<br>4,000 0 0    | The Official Trustees of Charitable Funds.                       | 130 0 0                    |
| Dewsbury Corporation $3\frac{1}{2}$ per cent. Redeemable Stock.                                | 445 0 0                 | Do. do.                                                          | 15 11 6                    |
| Dewsbury Corporation 3 per cent. Redeemable Stock (1903).                                      | 110 8 0                 | Do. do.                                                          | 3 6 2                      |
| <i>Hinchliffe Bequest.</i>                                                                     |                         |                                                                  |                            |
| Dewsbury Corporation 3 per cent. Redeemable Stock (1903).                                      | 46,072 7 0              | Do. do.                                                          | 1,382 3 4                  |
| Consols (Investment Account under Order of the Board of Education of 2 October 1903).          | 1,491 14 8              | Do. do.                                                          | (Income accumulating).     |
|                                                                                                |                         | Carried forward -                                                | 1,627 12 0                 |



[12 & 13 GEO. 5.] *Board of Education* [Ch. li.]  
*Scheme (Dewsbury Endowed Schools Foundation)*  
*Confirmation Act, 1922.*

A.D. 1922.

| Description.                                                                                   | Extent<br>or<br>Amount.       | Tenant Person<br>liable or Persons<br>in whose Name<br>invested. | Gross<br>Yearly<br>Income.  |
|------------------------------------------------------------------------------------------------|-------------------------------|------------------------------------------------------------------|-----------------------------|
| <i>Technical School.</i><br>School site buildings and<br>contents in Halifax Road<br>Dewsbury. | —                             | Brought forward<br>In hand.                                      | £    s.    d.<br>1,627 12 0 |
| Dewsbury Corporation 3 per<br>cent. Stock (1890) [ <i>Heming-<br/>way Prize Fund</i> ].        | £    s.    d.<br>50    0    0 | The Governors -                                                  | 1 10 0                      |
|                                                                                                |                               | TOTAL -                                                          | -£ 1,629 2 0                |

This schedule is made up to 25 November 1921.

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